Brief for the solicitor: service or digital content, product by product

HEALTHCARE CROWN ACADEMY LTD · 28 October 2026. **This is a brief for professional advice, not a conclusion.**

The question

For each product, is the consumer contract (a) a contract for **services**, (b) for **digital content not on a tangible medium**, or (c) **mixed**? The answer decides which early-supply rules apply under the Consumer Contracts Regulations 2013: - **Services (reg. 36):** express request to start within the cancellation period; on cancellation, a proportionate payment for what was supplied; loss of the right only after full performance with the reg. 36(2) acknowledgement. - **Digital content (reg. 37):** the right to cancel is lost once supply begins **only** if the consumer gave express consent **and** acknowledged losing the right, and the trader gave confirmation (reg. 16). Without these, the consumer can cancel and get a **full** refund; a proportionate deduction is not available.

Saying in our policy that our refund rules are a minimum does not by itself make the checkout compliant. We need the right consent wording for each product.

Products

Product	What the buyer gets	Features pointing to a service	Features pointing to digital content
Crown Pass (subscription, monthly/yearly, 7-day trial)	Premium access to MedLex (terminology modules, guides, worksheets), Carecraft (scenarios, lessons, activities), Lumen (study tool that works on the user's own files; no AI from us), Serein free	Continuing access, updates, account features, support	Fixed lessons, guides, printable worksheets, downloadable offline edition (Carecraft)
Gulf Pass (one-off, 3 or 6 months)	Question bank (1,297 items), mock exams, reasoning tools, dossiers, progress tracking, plus Crown Pass	Time-limited access, progress saved to account, updates	Fixed question bank and dossiers available in full on day one
Green Belt (one-off, 12 months)	Toolkit, tools, simulations, knowledge exam, Certificate of Completion	Exam marking and certificate issue, account	Fixed tools and course materials
Evinca review (from June 2027)	Human verification and review of the applicant's evidence, decision, publication	Clearly work done by people	Certificate/publication files

What the checkout says now

Main site and Gulf: an unticked box asking for access to start now, explaining a full refund within 3 days of paying and a proportionate refund after that; a second box confirming the payer is 18+ or a parent/guardian. Green Belt: a similar box. Evinca: 18+ and start-now boxes (services wording). No product currently asks for an **acknowledgement that the right to cancel is lost**, and the business does not want customers to lose it: it prefers to keep a refund right.

Options for the solicitor to assess

1. **Treat as services** (current approach). Keep the start-now request and proportionate refund. Risk: if a court sees the product as digital content, the deduction may not be allowed (full refund due).
2. **Treat as digital content, keep a generous refund policy.** Ask for express consent to start now (no acknowledgement of loss), so the statutory right is kept: in that case **full refunds** within 14 days, which the business would have to accept as the price of simplicity.
3. **Mixed contract.** Split the price or apply both sets of rules (for example: full refund within 14 days for the content part; proportionate for the service part). Complex to explain.
4. **Digital content with acknowledgement** of loss of the right, plus a voluntary goodwill refund policy. Gives most certainty on deductions but is less attractive to customers.

Questions for the solicitor

1. Which classification applies to each product above, given the actual features?
2. What exact checkbox wording should each product use, and does it need one box or two?
3. If option 2 is chosen, can the 3-day full / proportionate-after policy stay as a goodwill extra, or must every cancellation within 14 days be refunded in full?
4. Does the 7-day free trial change the analysis for the Crown Pass?
5. Does the answer differ for customers outside the UK (Gulf, EU)?